

24NNCV03546 24NNCV03546

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-22

Motion: CROSS-DEFENDANT TERRY SHENG QUAN'S SPECIAL MOTION TO STRIKE THE NINETH, TENTH, AND ELEVENTH CAUSES OF ACTION OF PHILLIP BALTAZAR'S SECOND AMENDED CROSS-COMPLAINT

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Case Number: 24NNCV03546 Hearing Date: September 22, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

WAI NGAI
FU aka DAVID FU, et al.,

Plaintiff(s),

vs.

PHILLIP
BALTAZAR, et al.,

Defendant(s).

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CASE NO.: 24NNCV03546

[TENTATIVE]

ORDER RE: CROSS-DEFENDANT TERRY SHENG QUAN'S SPECIAL MOTION TO STRIKE
THE NINETH, TENTH, AND ELEVENTH CAUSES OF ACTION OF PHILLIP BALTAZAR'S
SECOND AMENDED CROSS-COMPLAINT

Dept.

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8:30

a.m.

September

22, 2026

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I.

INTRODUCTION

On June 18, 2026, cross-defendant Terry

Sheng Quan ("Quan") filed this special motion to strike pursuant to Code of Civil Procedure section 425.16. Quan moves to strike the Ninth, Tenth, and Eleventh Causes of Action of cross-complainant Phillip Baltazar's ("Baltazar") Second Amended Cross-Complaint ("SACC"). The SACC was filed on September 22, 2025, and includes 11 causes of action. Quan argues that the three causes of action at issue in this motion — Defamation Per Se, Civil Harassment, and Civil Conspiracy to Defame — arise from a single Facebook post Quan allegedly made on November 27, 2024, commenting on Baltazar's conduct.

Plaintiff/cross-defendant Wai Ngai Fu
aka David Fu ("Fu") filed a joinder to Quan's motion as Fu is named in Baltazar's Eleventh Cause of Action for civil conspiracy.

Baltazar filed an opposition to the
motion to strike on August 10, 2026.

Quan filed a reply brief on September
16, 2026, which Fu joined.

II.

DISCUSSION

A special motion to strike ("anti-SLAPP motion") may be filed within 60 days after service of the operative pleading. An anti-SLAPP motion filed after 60 days may be permitted in the court's discretion. (Code Civ. Proc., § 425.16, subd. (f).) The purpose of the statute's timing requirements is to facilitate the dismissal of an action subject to a special motion to strike early in the litigation so as to minimize the cost to the defendant. (*Chitsazzadeh v. Kramer & Kaslow* (2011) 199 Cal.App.4th 676, 682 [citing *Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 67].)

Quan requests the Court consider his anti-SLAPP motion even though it was filed more than 60 days after the SACC was served. Quan explains the 9-month delay in filing this motion by claiming that he was financially unable to prepare and file this motion, but did so "once his circumstances allowed." (Motion, p. 6.) As an initial matter, the Court notes that the claims Quan moves to strike were first raised by Baltazar in December of 2024, meaning that this motion was filed more than a year and a half after Quan was given notice of Baltazar's defamation and civil harassment claims. Quan

additionally claims that Baltazar's 11 cross-claims were too complex and that it took time to analyze them. However, this motion only concerns three causes of action and allege conduct by Quan of which Quan already has personal knowledge. Moreover, Quan provides no evidence about his financial "circumstances" or how they changed to allow him to file this motion; Quan was able to file a motion for summary judgment a week before filing his anti-SLAPP motion.

The purpose of the anti-SLAPP statute would not be fulfilled if the Court were to hear Quan's anti-SLAPP motion. Primarily, it would not put the matter to rest early in the litigation to save on costs. Quan admits that extensive discovery has already been taken (and was necessary) in order to disprove Baltazar's defamation claims and bring this motion. Furthermore, trial is scheduled for November 2, 2026. An immediate appeal of a ruling on Quan's anti-SLAPP motion would derail the trial date, causing prejudice to all parties, including those who have motions for summary judgment/summary adjudication scheduled throughout October.

III.

CONCLUSION

The Court exercises its discretion to decline to hear Quan's anti-SLAPP motion. The motion is DENIED.

Dated this 22nd day of September
2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from

the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.